

IMPLEMENTING STUDENT DISCIPLINARY SANCTIONS

This regulation supports the implementation of Policy 8220, Student Disciplinary Sanctions, by setting forth the procedures by which sanctions are imposed.

Any student who has violated any School Board policy or LCPS regulation is subject to disciplinary sanction(s). Students have the right to due process and to fair procedures in determining facts and imposing sanctions.

A. Investigation and Provision of Due Process. Except as provided for below in Subsection C.2., prior to the imposition of any suspension, reassignment or recommendation for expulsion to the School Board, the following will occur:

1. An impartial investigation will be conducted when misconduct occurs under circumstances set forth in Section A of Policy 8205, Authority to Take Disciplinary and Other Action Against Students.

2. The student will be given oral or written notice of the suspected violation(s) of School Board policy and/or LCPS regulation and an opportunity to present the student's own account of what occurred. If the student denies the allegations, then the student also shall be provided with an explanation of the facts known to school personnel.

B. In-School Sanctions. Procedures by which in-school sanctions are imposed are set forth in Policy and Regulation 8215, In-School Disciplinary Measures.

C. Short-Term Suspension.

1. Notice. Upon deciding to suspend a student, the administrator will:

- a. Verbally notify the student of the suspension and make a reasonable effort to notify the student's parent(s)/guardian(s), verbally and/or via secure electronic notification.
- b. Send written notice of the suspension to the student's parent(s)/guardian(s) by the end of the school day when possible, but not later than the end of the next school day. The written notice will include the reason(s) for the suspension; its length; the date the student may return to school; instructions for accessing and completing graded work; appeal procedures; and information concerning the availability of community-based educational, training, and intervention programs which may be pursued at the expense of the parent(s)/guardian(s).

i. A copy of the written notice will be provided to the Office of

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School Administration (OSA), which serves as the Superintendent's designee in matters related to student discipline.

2. Emergency Temporary Removal. Prior to imposing a short-term suspension, if it is determined by the principal and with the concurrence of the OSA Director or designee that the student's presence poses a continuing danger to persons or property or an ongoing threat of disruption, then the student may be removed from school immediately and the notice, explanation of facts, and opportunity to present the student's own version of what occurred will be given as soon as practicable thereafter.

3. Referral to OSA or Recommendation for Reassignment. Where circumstances warrant such, a short-term suspension of ten days may be made in conjunction with a referral to OSA or a recommendation for reassignment.

4. Appeal of Short-Term Suspension to Principal. An assistant principal's decision to suspend a student (that has not been made in conjunction with a referral to OSA or recommendation for reassignment) may be appealed in writing to the principal by the student's parent(s)/guardian(s) or by the adult student (*i.e.*, a student who has reached the age of 18). The written appeal must be submitted to the principal within five business days of the date of the written notice of the suspension and should include the reason(s) for the appeal.

- a. Upon receipt of a written appeal, the principal, at the principal's sole discretion, may reinstate the student in school until the appeal has been decided.
- b. Before deciding to affirm, modify, or annul the suspension, the principal will review and consider the facts of the incident as determined by the assistant principal; any available evidence, including the student's version of events and any statements provided by witnesses; and the information provided by the parent(s)/guardian(s) as part of the appeal. The principal, at the principal's sole discretion, may conduct a meeting with the student and the student's parent(s)/guardian(s) as part of the review.
- c. Within five business days of receiving the written appeal, the principal will issue written notice of the decision to affirm, modify, or annul the suspension. If the decision affirms any portion of the suspension, then the written notice will include the procedures for further appealing to OSA.

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- d. If the principal annuls or modifies the suspension, then the student's scholastic record will be amended accordingly.

5. Appeal of Short-Term Suspension to OSA. A principal's decision to suspend a student or to affirm a student's suspension may be appealed in writing to OSA by the student's parent(s)/guardian(s) or the adult student. Such appeal must be submitted to OSA within five business days of the date of the principal's written notice and should include the reason(s) for the appeal.

- a. The OSA hearing officer, at the OSA hearing officer's sole discretion, may elect to schedule a hearing or decide the appeal on the written record.
 - i. Any hearing will be scheduled promptly with the party making the appeal. The student may be represented at the hearing by the student's parent(s)/guardian(s) and additional adults who may include legal counsel. However, no adult who is also an LCPS student shall be permitted to attend the hearing. The hearing may be recorded by LCPS through stenographic, tape, or other means, and no other recordings are permitted. Upon request, the student, the parent(s)/guardian(s), and the student's representative(s) will be afforded the opportunity to review any recording of the hearing proceeding.
 - ii. If the appeal will be decided on the written record, then OSA will provide the party making the appeal with a redacted copy of the information submitted by the school administration in support of the suspension. The party making the appeal will be afforded three business days to provide a written response. Upon receipt of a written response, the OSA hearing officer may opt to schedule a hearing on the appeal.
- b. Within five business days of the hearing; OSA's receipt of a written response to the aforementioned redacted information; or, if no response is received, the deadline for providing a written response, as applicable, the OSA hearing officer will issue written notice of

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the decision to affirm, modify, or annul the short-term suspension.

- i. The OSA hearing officer's decision is final and may not be further appealed.
 - ii. If the OSA hearing officer annuls or modifies the suspension, then the student's scholastic record will be amended accordingly.
- c. If a student's parent(s)/guardian(s) or an adult student appeals a short-term suspension made in conjunction with a referral to OSA or a recommendation for reassignment, then the appeal will be considered at the Student Hearing described below in Section I. The short-term suspension may be affirmed, modified or annulled; if affirmed, the suspension may also be extended pending the OSA hearing officer's decision on the referral to OSA or the recommendation for reassignment.

D. Long-Term Suspension, Reassignment, and/or Expulsion Recommendation Following a Referral to OSA.

1. Referral to OSA. When a principal makes a referral to OSA, written notice of the referral will be sent to the student's parent(s)/guardian(s). The written notice will include the reason(s) for the referral; a statement that the student is subject to long-term suspension, reassignment, and/or expulsion; information regarding the opportunity to participate in a Student Hearing; instructions for accessing and completing graded work; and information concerning the availability of community-based educational, training, and intervention programs which may be pursued at the expense of the parent(s)/guardian(s).

2. Student Hearing and Requisite Finding. After conducting a Student Hearing and finding that the student engaged in serious and/or repeated violations of School Board policy or LCPS regulation, the OSA hearing officer may long-term suspend the student (including on an extended basis); reassign the student to a different LCPS school or program, including an alternative education program; and/or recommend that the student be expelled.

3. Notice. The OSA hearing officer will send written notice of the decision regarding the disciplinary sanction(s) to the student's parent(s)/guardian(s) as soon as practicable, but no later than five business days following the Student Hearing. The written notice will provide the rationale for any sanction(s); appeal procedures, if

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applicable; and information, as appropriate, concerning the availability of community-based educational, training, and intervention programs which may be pursued at the parent's/guardian's expense.

- a. When a long-term suspension is imposed (without a reassignment), the written notice will also include the length of the suspension; the date the student may return to school; information regarding any assignment to an LCPS alternative education program during the term of the suspension; and, if no such assignment is made, instructions for accessing and completing graded work.
- b. When a reassignment is imposed, the written notice will also include the timeline for readmission to a regular LCPS school or to the student's home school, as applicable.
- c. When a recommendation for expulsion is made, the written notice will also include instructions for accessing and completing graded work pending the School Board's decision on the expulsion recommendation.

4. Appeal of Long-Term Suspension, Reassignment, and/or Expulsion Recommendation. The OSA hearing officer's decision to long-term suspend, reassign, and/or recommend expulsion may be appealed in accordance with Policy 8230, Procedures for Student Disciplinary Appeals to School Board.

E. Reassignment of Student Charged with or Found Guilty or Not Innocent of a Criminal Offense.

1. Reassignment Recommendation. When a principal recommends the reassignment of a student who has been charged with or found guilty or not innocent of a criminal offense described in Subsections D.1. and D.2. of Policy 8220, Student Disciplinary Sanctions, written notice of the recommendation will be sent to the student's parent(s)/guardian(s) and will include the reason(s) for the recommendation and information regarding the opportunity to participate in a Student Hearing.

- a. If, in accordance with Section H of Policy 8220, a ten-day suspension is made in conjunction with the recommendation for reassignment, then the written notice will also include instructions for accessing and completing graded work; and information concerning the availability of community-based educational, training, and intervention programs which may be pursued at the expense of the parent(s)/guardian(s).

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2. Student Hearing and Requisite Finding. After conducting a Student Hearing and finding that the provisions of Subsection G of Virginia Code § 16.1-260 are applicable, then the OSA hearing officer may reassign the student to a different LCPS school or program, including an alternative education program.

3. Notice. The OSA hearing officer will send written notice of the reassignment decision to the student's parent(s)/guardian(s) as soon as practicable, but no later than five business days following the Student Hearing. The written notice will provide the rationale for the reassignment; the timeline for readmission to a regular LCPS school; appeal procedures; and information concerning the availability of community-based educational, training, and intervention programs which may be pursued at the expense of the parent(s)/guardian(s).

4. Exigent Circumstances. Upon receiving notice that a student has been charged with or found guilty or not innocent of a criminal offense described in Subsections D.1. and D.2. of Policy 8220, the Superintendent or designee, at the Superintendent's or designee's sole discretion, may determine that exigent circumstances exist and that the student's presence at the student's assigned school may pose an immediate danger to persons or property or a threat of disruption to the operations of the school. In such case, the student may be reassigned to an alternative education setting by the Superintendent or designee upon written notice of the reassignment and the opportunity for the student and/or the student's parent(s)/guardian(s) to participate in a Student Hearing.

5. Appeal of Reassignment. The OSA hearing officer's reassignment decision may be appealed in accordance with Policy 8230, Procedures for Student Disciplinary Appeals to School Board.

F. Reassignment of a Student Reassigned to an Alternative Education Program by Another Division. A student who has been reassigned to an alternative education program by another division in Virginia or in another state may be reassigned to an LCPS alternative or adult education program in accordance with Policy and Regulation 8225, Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program, which provide for written notice, a Student Hearing, and appeal procedures.

G. Exclusion. The OSA hearing officer may deny a student's admission or readmission to LCPS in accordance with Policy and Regulation 8225, Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program, which provide for written notice, a Student Hearing, and appeal procedures.

H. Expulsion. The procedures by which an expulsion is imposed are set forth in Regulation 8220.2, Expulsion by School Board.

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I. Student Hearing.

1. Upon receipt of a referral to OSA, a recommendation for reassignment, or a recommendation for exclusion, OSA will promptly schedule a Student Hearing.

2. Upon request, OSA will provide the parent(s)/guardian(s) or adult student with a redacted copy of the information submitted by the school administration in support of the referral or recommendation.

3. The student may be represented at the hearing by a parent(s)/guardian(s) and additional adults who may include legal counsel. However, no adult who is also an LCPS student shall be permitted to attend the hearing.

4. The hearing may be recorded by LCPS through stenographic, tape, or other means, and no other recordings are permitted. Upon request, the student, the parent(s)/guardian(s), and the student's representative(s) will be afforded the opportunity to review any recording of the hearing proceeding.

5. The Student Hearing will include, but is not limited to, a review of the facts of the investigation conducted by the school principal or designee; consideration of the student's version of events; and the student's discipline record.

6. Following the Student Hearing, the OSA hearing officer will determine what, if any, violation(s) of School Board policy or LCPS regulation was committed by the student, and what, if any, sanction(s) and/or intervention(s) will be assigned.

a. Upon finding that a student who was referred to OSA violated a School Board policy or LCPS regulation, the OSA hearing officer will consider all possible sanctions in the same hearing, to include short-term suspension, long-term suspension, reassignment, and/or a recommendation for expulsion.

i. Any recommendation made by the principal will be considered by the OSA hearing officer. However, no such recommendation, including a recommendation for expulsion, is binding upon the OSA hearing officer, who may impose alternative disciplinary sanctions or determine that no discipline is warranted.

ii. The OSA hearing officer may consider forwarding a recommendation for expulsion to the School Board whether or not such has been expressly recommended by the principal.

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7. Language interpretation services will be provided for Student Hearings, if English is not the student and/or parent's/guardian's primary language. Interpreter services may also include, but are not limited to, assistance in understanding notices and submitting requests to OSA.

J. Transition Plan. Before any student assigned to a different LCPS school or program in accordance with this regulation can begin attending the assigned LCPS setting, a transition plan must be developed to ensure safety and a smooth transition for the student.

1. The transition plan will be developed at a transition meeting, wherein the following individuals will be invited to participate: the student; the student's parent(s)/guardian(s); a representative from the LCPS Office of Safety and Security; and the following staff from the LCPS settings in which the student was last enrolled and to which the student is being assigned: principal or designee; school counselor; and special education or Section 504 case manager, if applicable.

2. Any LCPS staff identified in Subsection J.1. who is unable to participate in the transition meeting should be consulted before the transition plan is finalized.

3. Other relevant LCPS staff may be invited to participate in the transition meeting.

4. With the written consent of the student and/or the student's parent(s)/guardian(s) to release to, and/or exchange confidential information with, individuals who are not employed by LCPS, such individuals may be invited to participate in the transition meeting. Such individuals include, but are not limited to, private providers and representatives of local law enforcement, court services, and the Office of the Commonwealth Attorney.

K. Special Education. The imposition of any discipline sanction upon a student with an Individual Education Program (IEP) or Section 504 Plan shall be done in accordance with Regulation 8220.3, Disciplinary Procedures for Students with Disabilities. Nothing herein proscribes the rights of students with disabilities to receive educational services from LCPS under applicable federal and state regulations pertaining to the education of students with disabilities.

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Legal Refs: Virginia Code §§ [16.1-260](#), [22.1-277.04](#), [22.1-277.05](#), [22.1-277.06](#); [22.1-277.2:1](#), [8VAC20-81-160](#); [Individuals with Disabilities Education Act](#), [Section 504 of the Rehabilitation Act of 1973](#), [Americans with Disabilities Act](#)

Cross Refs.: [Policy 8215](#), In-School Disciplinary Measures; [Regulation 8220](#), Student Disciplinary Sanctions; [Policy 8225](#), Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program; [Policy 8230](#), Procedures for Student Disciplinary Appeals to School Board; [Regulation 8215](#), In-School Disciplinary Measures; [Regulation 8220.2](#), Expulsion by School Board; [Regulation 8220.3](#), Disciplinary Procedures for Students with Disabilities; [Regulation 8225](#), Admission, Exclusion or Reassignment of a Student Previously Expelled, Long-Term Suspended or Reassigned to an Alternative Education Program